



ONE Bank
PLC

Card Business, CHQ :

Jalalabad Bhaban (4th Floor), 22 Kawran Bazar C/A, Dhaka-1215
Telephone : +880 9666191001, E-mail : cards@onebank.com.bd
Web : www.onebank.com.bd

E-99

DEED OF AGREEMENT FOR 0% Smart EMI

THIS CUSTOMER BENEFIT AGREEMENT FOR EMI (THE "AGREEMENT") IS MADE ON THIS 24th DAY OF APRIL, 2025 (THE "EXECUTION DATE") AND SHALL COME INTO EFFECT ON THE 5th DAY OF MAY, 2025 (THE "COMMENCEMENT DATE") OF THE CHRISTIAN ERA.

BETWEEN

ONE Bank PLC, a scheduled bank incorporated in Bangladesh under the Companies Act, 1994 and governed by the Banking Companies Act, 1991 & licensed from the Bangladesh Bank, carrying out its banking business having its Corporate HQ at HRC Bhaban, 46, Karwan Bazar C/A, Dhaka-1215 hereinafter referred to as the "**ONE Bank PLC**" (which expression shall, unless excluded by or repugnant to the context mean and include its successors-in-interest, legal representatives, administrators and assignees) as the "First Party".

AND

JONY TELECOM is a Proprietorship company, having office at 445, Singapore Bangkok Market (3rd Floor), Agrabad C/A, Chattogram, Bangladesh . Represented by its authorized representative (here in after referred) to "**JONY TELECOM**", which expression where the context so admits shall include its successors-in-interest, administrators, authorized representatives and assignees), of the **SECOND PARTY**

ONE Bank PLC, and **JONY TELECOM**, is being called in this Agreement individually as "**Party**" and collectively as "**Parties**",

WHEREAS

- A. **ONE Bank PLC** is engaged in banking business and other financial services through its different channels throughout the country. It is running its operations through a wide network of branches and sub-branches, ATMs, Contact Centers, OK Wallet and Agent Banking. **ONE Bank PLC** spreads its business in major cities/towns in the country including Dhaka, Chittagong, Sylhet, Khulna, Rajshahi, Rangpur, Barisal, Cox's Bazar and stepping into rural areas as well through agent banking.
- B. **JONY TELECOM** is a leading Mobile and accessories shop which is located in Chattogram, Bangladesh.
- C. **ONE Bank PLC**, and **JONY TELECOM**, reached to an understanding to offer 0% interest installment purchase facility 0% Smart EMI to the Credit Cardholders of **ONE Bank PLC**. Now therefore, in consideration of mutual benefits, this Agreement entered into between the Parties including any subsequent variation or management and mutual covenants contained herein, the Parties hereto agree as follows:

1. JONY TELECOM UNDERTAKES THE FOLLOWING RESPONSIBILITIES:

- 1.1. **JONY TELECOM** will offer 0% interest installment purchase facility 0% Smart EMI to the Credit Cardholders of **ONE Bank PLC**.

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- 1.2. **ONE BANK PLC** will have received the commission from **JONY TELECOM** as per below structure:

EMI Tenure	3 Months	6 Months	9 Months	12 Months	18 Months	24 Months	36 Months
EMI Commission	3%	4%	6%	7.5%	11%	14%	18.50%
Minimum Transaction Amount	BDT 10,000/-						

- 1.3. The minimum purchase amount needs to be **BDT 10,000**. Upon receipt of invoice from **ONE Bank PLC**, **JONY TELECOM** will pay the consolidated 0% Smart EMI commission amount to OBPLC through a payment order or account payee cheque or BEFTN within 10 working days after receiving the demand/Invoice for payment from OBPLC. ("Upon deduction of all applicable taxes (VAT and AIT) as per laws of Bangladesh" if applicable)

BEFTN Account Information Details Given Below:

1	Bank Name	: ONE Bank PLC.
2	Account title	: Miscellaneous -VISA Card
3	Account Number	: 202090546
4	Branch Name	: CHQ, HEAD OFFICE
5	Routing No	: 165270009

- 1.4. **JONY TELECOM** shall authorize **ONE Bank PLC** to realize EMI commission from their respective Account (maintained in OBPLC) by debiting (as per Debit authorization) its account with **ONE Bank PLC** and will issue against invoice within 5 (five) working days.
- 1.5. **JONY TELECOM** will allow **ONE Bank PLC**, to include its company name, logo, address, telephone number & other information in all communication materials produced by **ONE Bank PLC**. Use of **ONE Bank PLC**, name, logo & details on any communication material originating from **JONY TELECOM**, will be done with prior written consent from **ONE Bank PLC**, and vice versa.
- 1.6. **JONY TELECOM** will allow **ONE Bank PLC**, to put branding materials at its premises.
- 1.7. Whenever a Cardholder wants to avail 0% Smart EMI, **JONY TELECOM**, will get a 0% Smart EMI Form (provided by **ONE Bank PLC**), filled in and signed by the Cardholder. **JONY TELECOM**, will share the signed 0% Smart EMI Forms with **ONE Bank PLC** within 5 (five) working days. Or, customers can make online transaction and **JONY TELECOM**, will share the transaction details with excel format or e mail prescribed EMI form (format will be provided by **ONE Bank PLC**).
2. **ONE Bank PLC**, UNDERTAKES THE FOLLOWING RESPONSIBILITIES:



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- 2.1. **ONE Bank PLC** will provide 0% Smart EMI Forms to **JONY TELECOM**, and process each & every duly filled and signed Form received from **JONY TELECOM**, so that Cardholders can enjoy 0% interest installment purchase facility.
- 2.2. **ONE Bank PLC** will maintain an MIS of transactions & associated commission for all the transactions converted into 0% Smart EMI and shares it with **JONY TELECOM**, on a monthly basis. **ONE Bank PLC** will raise invoices, incorporating transaction details, to **JONY TELECOM**, the first week of each month to realize commission.
- 2.3. **ONE Bank PLC**, will promote the 0% Smart EMI offer with **JONY TELECOM**, Business Systems through following channels:
 - A. **SMS**
 - B. **Electronic Direct Mailer**
 - C. **Communication through social media**
 - D. **Website**

3. CONFIDENTIALITY

Both the Parties will maintain confidentiality. Confidential Information means, for the purpose of this 0% Smart EMI Agreement any and all information technical, commercial or of any other kind whether documented or not, furnished by one Party to the Second Party, with the exception of:

- a) Information, which the Parties expressly have agreed not to be confidential.
- b) Information which is publicly known, or which will be brought to the public knowledge without any fault made by the Party receiving the information.
- c) Information received from a third Party or which will be received from a third Party without restraints as to the use thereof.

4. DURATION & TERMINATION

This Agreement shall be effective from **5th DAY OF MAY, 2025** and shall continue to remain valid unless otherwise terminated by the Parties. The parties hereto reserve the right to terminate this Agreement at any time by giving **30 days' prior** written notice.

5. DISPUTE RESOLUTION

All disputes relating to the terms and conditions of this Agreement shall be settled amicably between the Parties within 30 days. If the amicable settlement fails or that 30-day period expires without any settlement, that dispute shall be referred to arbitration in accordance with the provisions of the Arbitration Act, 2001. Each Party shall appoint its own arbitrator and the arbitrators of the parties so appointed shall appoint a third arbitrator who shall be the Chairman of the Arbitral tribunal. The award of the Arbitral Tribunal shall be final and binding upon the Parties. Each Party shall bear its own costs and charges of arbitration unless otherwise directed by the tribunal. The arbitration shall take place in Dhaka.

6. ENTIRE UNDERSTANDING

This Agreement sets out the entire understanding of the Parties in respect of the subject matter hereof, and overrides any agreement or other document, recording the understanding, negotiations, or commitments of the Parties on the subject matter hereof, prior to the date first above written.

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7. REPRESENTATION AND WARRANTIES

7.1 Both Parties have full legal rights, powers and authority to enter into this 0% Smart EMI Agreement.

7.2 The execution, delivery and performance of the terms and conditions and the obligations of this 0% Smart EMI Agreement by the Parties shall not:

- a) Violate or contravene any provision of any applicable law by which the Parties are bound.
- b) Violate, be in conflict with, or result in a breach of any provision of either Party's Memorandum of Association or Articles of Association.
- c) Be incompatible with, or result in a serious breach of, any provision of any agreement, contract, or other obligations or commitments to which the Parties are obligated.

8. ASSIGNMENT

Neither Party shall assign and/or transfer any of its rights, obligation and/or interests arising or claimed under or by virtue of this Agreement to a third Party without obtaining the prior written consent of the Second Party.

9. GOVERNING LAWS AND JURISDICTION

This Agreement shall be governed by and be construed in accordance with the laws of the People's Republic of Bangladesh and shall be subject to the jurisdiction of the Courts of Bangladesh.

10. AMENDMENT

At any time during the validity of this Agreement, the Parties may mutually agree to modify or amend the existing terms, conditions, or requirements of this Agreement only in writing as circumstances demand. This Agreement does not restrict **ONE Bank PLC**, and **JONY TELECOM** from entering into agreements with other organizations for the same or similar purposes.

11. MISCELLANEOUS

- a) This Agreement is executed in 2 (two) sets in the original. Each of the Parties shall get a set of original of this Agreement. This Agreement has been executed in English language, which shall be binding and controlling language for all matters relating to the meaning or interpretation of this Agreement. All correspondence concerning the content of this Agreement shall be in English language. The Parties, having read all the terms and conditions pertaining to this Agreement accept them in their entirety and hereby affix their signatures and their official stamps as evidence.
- b) Each Party agrees to indemnify, defend and hold the other Party harmless and keep it indemnified from and against all losses, damages, penalties, costs, expenses and charges imposed on or incurred by the other Party as a result of any claims, demands, litigations, law suits and/or legal proceedings by a third party arising out of any act(s), omission(s), non-compliance or breach by the defaulting Party, its officers or employees of directives, rules, regulations, instructions, or orders of any statutory, regulatory or municipal authority or any other applicable laws or third-party agreements in the running, operation, maintenance and conduct of activities pursuant to this Agreement.
- c) In the event of any of the clauses or sub-clauses of this Agreement being held to be invalid, illegal or ineffective by any court or tribunal for any reason whatsoever, this Agreement shall be construed and be binding upon the Parties as if such clause or sub-clause had been deleted from this Agreement, without affecting the remaining provisions of this Agreement.



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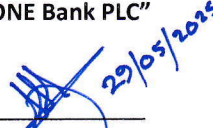
Notices: Each communication to be made hereunder shall be in writing and served to the Parties addresses as mentioned below.

ONE BANK PLC Address	Merchant Address
ONE Bank PLC: Corporate HQ at HRC Bhaban, 46, Karwan Bazar C/A, Dhaka-1215.	JONY TELECOM Email:didarulislam1255@gmail.com Cell:01819092009 405, Singapore Bangkok Market (3rd Floor), Agrabad C/A, Chattogram, Bangladesh

IN WITNESS WHERE OF, the Parties hereto have caused this Agreement to be executed by their duly authorized representatives as of the effective date.

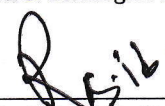
Agreed and signed by
For & on behalf of

"ONE Bank PLC"

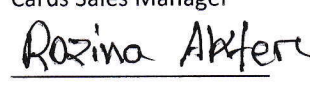

Syed Maruf Ali
Head of Cards Business

Witness:


Md. Nurul Alam Khan
Head of Strategic Alliance

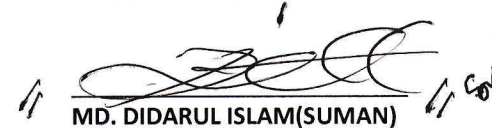

Bedesh Bosc Rajib
Manager Business Excellence


Md. Razib Haider Chowdhury
Cards Sales Manager

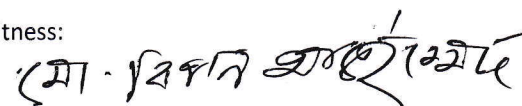

Rozina Akter
Business Support Officer

Agreed and signed by
For & on behalf of

"JONY TELECOM"


MD. DIDARUL ISLAM (SUMAN)
Owner

Witness:



Jony Telecom

MD. DIDARUL ISLAM (SUMAN)
Proprietor

01819-092009

didarulislam1255@gmail.com

MEMORANDUM OF UNDERSTANDING (MOU)

THIS MEMORANDUM OF UNDERSTANDING IS MADE & EXECUTED ON 29th DAY OF JUNE 2020 OF THE CHRISTIAN ERA.

BETWEEN

ONE Bank Limited, a scheduled bank incorporated in Bangladesh under the Companies Act, 1994 and governed by the Banking Companies Act, 1991 & licensed from the Bangladesh Bank, carrying out its banking business having its Corporate HQ at HRC Bhaban, 46, Karwan Bazar C/A, Dhaka-1215 hereinafter referred to as the "**BANK/OBL**" (which expression shall, unless excluded by or repugnant to the context mean and include its successors-in-interest, legal representatives, administrators and assignees) as the "First Party"

AND

Jony Telecom a proprietorship concern established under the relevant law of Bangladesh, having its registered address at 405, Singapore Bangkok Market, 3rd Floor, Agrabad, Chattogram, hereinafter referred to as **Jony Telecom** (which expression where the context so admits shall include its successors-in-interest, administrators, executors, legal representatives and assignees) as the "Second Party".

WHEREAS:

Jony Telecom and **OBL** hereinafter may be referred to individually as the "Party" and collectively as the "Parties".

AND WHEREAS:

Both the parties have reached an understanding to jointly promote 0% SmartEMI facility ((i.e. an Installment Plan offered by OBL through its Credit Card) agreed to execute this MoU for their mutual benefit under the following terms and conditions:

Jony Telecom will offer 3, 6, 9 & 12 months 0% SmartEMI (Equated Monthly Installments) facilities on its own products & offered to OBL credit card holders. As per below structure OBL will claim commission to **Jony Telecom** respectively. Subject to intimation to OBL in writing, **Jony Telecom** may bring changes in their product range and tenure of the 0% SmartEMI **Jony Telecom** will send filled up form as prescribed by OBL.

- OBL will receive commission from **Jony Telecom** as per below structure.

Tenure	Commission Structure	Minimum Purchase Amount
3 Months	3.00%	BDT 10,000/-
6 Months	4.00%	
9 Months	6.00%	
12 Months	7.50%	





ONE Bank
LIMITED

Retail Banking Division :

Jalalabad Bhaban (4th Floor), 22 Kawran Bazar C/A, Dhaka-1215
Tel : 88-02-9131887, 9131896, 9131915, Fax : +88-02-9131885
E-mail : retail@onebank.com.bd, Web : www.onebank.com.bd

- Both parties will maintain a Management Information System (MIS) on the monthly transaction volume through SmartEMI at 0% interest and a demand/invoice for the payment (advice) summary to be forwarded to "Second Party" by OBL within first week of the following month. "Second Party" will pay the consolidated 0% SmartEMI commission amount to OBL through a payment order or account payee cheque or BEFTN within 10 working days after receiving the demand for payment from OBL. ("Upon deduction of all applicable taxes (VAT and AIT) as per laws of Bangladesh" if applicable)
- Both parties will also place the promotional materials related to campaign at their respective offices and/or premises. Provided that, "Second Party" should display and distribute relevant 0% SmartEMI materials to all exclusive showrooms. OBL may also display necessary brochures to all branches (preferably at the transaction counters where the target customers should assemble) and send message through credit card holder statement. Provided that, design and creative should be finalized and approved by First & Second Party mutually.
- Clubbing of the 0% SmartEMI offer or the discount offer with any other promotional offer of **Jony Telecom** will be at the sole discretion of **Jony Telecom**.
- Combination of full and partial payment of sale products of **Jony Telecom** will be allowed under this MoU.
- Both the parties agree to allow their company name, logo, address, telephone number & information on the joint promotional campaign.
- Both parties shall exercise their due diligence and use its best effort and integrity to promote the business and mutual interest of both the parties and most importantly, shall ensure strict protection and upkeep of each party's reputation, confidentiality of information and goodwill.

CONFIDENTIALITY:

- Any information, if requested to keep confidential by either party, should not be disclosed.
- Both parties shall not make or publish any derogatory or disparaging statement or do anything which may damage or lower their respective reputations.

WARRANTIES AND UNDERTAKINGS:

Jony Telecom represents and warrants that the after sales service provided by them to the OBL Credit Card members shall be provided with due care and skill maintaining required standard serving up to the customers' satisfaction.

RELATIONSHIP:

Nothing in this understanding creates joint venture, relationship of partnership or agency between the parties. **Jony Telecom** and **OBL** both reserve the right to enter into different kind of understanding with any other entity.

DURATION & TERMINATION:

This MoU shall take on effect from June 29, 2020 and remain valid for a period of 1 (One) year from the date of signing of this understanding. This MoU shall automatically be renewed for a further period of same duration and terms and condition unless terminated by either party by giving 30 days prior written notice for any reason whatsoever.



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E-mail : retail@onebank.com.bd, Web : www.onebank.com.bd

ACKNOWLEDGMENT:

Each party hereto hereby acknowledges that all parties hereto participated equally in the negotiation and drafting of this MoU and that, accordingly, no court construing this MoU shall construe it more stringently against one party than against the other.

DISPUTE RESOLUTION AND JURISDICTION:

Prior commencing court proceeding in respect of any dispute arising out of, under or within this MoU, the parties shall endeavor resolving the dispute by negotiation among parties or by adopting any means of resolution decided by both parties at the time of negotiation.

This MoU and any matters relating to this understanding shall be governed by and construed in accordance with the existing laws of Bangladesh.

COUNTERPARTS:

That the MoU shall be executed in two counterparts and each party shall keep one original, however both of them taken together shall constitute one and the same document.

IN WITNESS WHEREOF, THIS MOU IS SIGNED BY THE BOTH PARTIES AS FOLLOWS:

For and on behalf of :

ONE BANK LIMITED

Md. Kamruzzaman
Head of Retail Banking

For and on behalf of :

JONY TELECOM

Md. Didarul Islam
Proprietor

Witness:

Md. Mahinur Rahaman
Sr. Manager, Business Intelligence &
Customer Proposition

Witness:

Md. Lokman Meah

Muhammad Rashedul Karim Rakil
Business Support Officer

Md. Tarakh